

OFFICE OF THE SECRETARY

P.O. Box 942883
Sacramento, CA 94283-0001



July 23, 2018

Honorable John Conley
Judge of the Superior Court
County of Orange
700 Civic Center Drive West
Santa Ana, CA 92701

Re: Phan, Thanh Tan
CDC No.: AH3051
Case No.: 08WF0487
Date of Sentence: June 13, 2012

Dear Honorable John Conley:

The purpose of this letter is to provide the court with authority to resentence Thanh Tan Phan pursuant to Penal Code Section 1170, subdivision (d). This section provides that, upon recommendation of the Secretary of the California Department of Corrections and Rehabilitation, the court may recall a previously ordered sentence and commitment, and resentence the defendant in the same manner as if he or she had not previously been sentenced, provided the new sentence is no greater than the initial sentence.

Inmate Phan was sentenced in 2012, and was convicted of section 245, subdivision (a)(1), Assault with deadly weapon. The trial court sentenced inmate Phan on June 13, 2012. At sentencing, the trial court imposed two sentence enhancements: 12022.7 and 186.22, subdivision (b)(1)(C). Both sentence enhancements were attached to Inmate Phan's section 245 offense. (See attached abstract.)

In light of the above, please consider *People v. Gonzalez* ((2009) 178 Cal.App.4th 1325. In *People v. Gonzalez*, the appellate court held the trial court should not have imposed sentence enhancements under section 12022.7, subdivision (a) and section 186.22, subdivision (b)(1)(C) because both sentence enhancements were based on the great bodily injury the defendant caused while committing the underlying offense. (*Id.* at p. 1332.)

Based on the above facts and case law, it appears that inmate Phan's sentence warrants the attention of the court. Pursuant to Section 1170, subdivision (d), as the Secretary, I recommend the inmate's sentence be recalled and that he be resented in accordance with the cited authority.

Sincerely,



SCOTT KERNAN
Secretary

Enclosures:
Abstract of Judgment-Prison Commitment-Determinate
Minute Order
1st Felony Information

cc: Honorable Charles Margines, Orange County Presiding Judge
Orange District Attorney
Private Attorney

FELONY ABSTRACT OF JUDGMENT—DETERMINATE
(NOT VALID WITHOUT COMPLETED PAGE TWO OF CR-290 ATTACHED)

CR-290

SUPERIOR COURT OF CALIFORNIA, COUNTY OF: Orange		FILED SUPERIOR COURT OF CALIFORNIA COUNTY OF ORANGE CENTRAL JUSTICE CENTER JUN 26 2012 ALAN CARLSON, Clerk of the Court ELI FLORES DEPUTY	
PEOPLE OF THE STATE OF CALIFORNIA vs. DEFENDANT: Phan, Thanh Tan		DOB: 09-20-80	08WF0487 -A
AKA: Boy, Sperm ; Phan, Tan Thanh ; Phan, Thanh ; Phan, Thanh T ;			-B
CII NO.: A11259830			-C
BOOKING NO.: ☒ NOT PRESENT			-D
FELONY ABSTRACT OF JUDGMENT ☒ PRISON COMMITMENT ☐ COUNTY JAIL COMMITMENT ☒ AMENDED ABSTRACT			
DATE OF HEARING 06-13-12	DEPT. NO. C44	JUDGE John Conley	
CLERK John Wood	REPORTER No appearances	PROBATION NO. OR PROBATION OFFICER ☐ IMMEDIATE SENTENCING	
COUNSEL FOR PEOPLE No appearances		COUNSEL FOR DEFENDANT No appearances ☐ APPOINTED	

1. Defendant was convicted of the commission of the following felonies:

☐ Additional counts are listed on attachment
0 (number of pages attached)

COUNT	CODE	SECTION NO.	CRIME	YEAR CRIME COMMITTED	DATE OF CONVICTION (MO/DATE/YR.)	CONVICTED BY			TERM (L, M, U)	CONCURRENT	CONSECUTIVE TO VIOLENT	CONSECUTIVE TO NON-VIOLENT	CONSECUTIVE FULL TERM	INCOMPLETE SENTENCE (REFER TO Item 5)	654 STAY	PRINCIPAL OR CONSECUTIVE TIME IMPOSED	
						JURY	COURT	PLEA								YRS.	MOS.
2A	PC	245(a)(1)	Assault with deadly weapon	08	07 / 20 / 10	X			M							03	00
3A	PC	186.22(a)	Participate in criminal street	08	07 / 20 / 10	X			M						X		
					/ /												
					/ /												
					/ /												
					/ /												

2. ENHANCEMENTS charged and found to be true TIED TO SPECIFIC COUNTS (mainly in the PC 12022 series). List each count enhancement horizontally. Enter time imposed or "S" for stayed. DO NOT LIST ANY STRICKEN ENHANCEMENT(S).

COUNT	ENHANCEMENT	TIME IMPOSED OR "S" FOR STAYED	ENHANCEMENT	TIME IMPOSED OR "S" FOR STAYED	ENHANCEMENT	TIME IMPOSED OR "S" FOR STAYED	TOTAL	
2A	186.22(b)(1) PC	05Y00M	12022.7(a) PC	03Y00M			8	0

3. ENHANCEMENTS charged and found to be true FOR PRIOR CONVICTIONS OR PRISON TERMS (mainly in the PC 667 series). List all enhancements horizontally. Enter time imposed or "S" for stayed. DO NOT LIST ANY STRICKEN ENHANCEMENT(S).

ENHANCEMENT	TIME IMPOSED OR "S" FOR STAYED	ENHANCEMENT	TIME IMPOSED OR "S" FOR STAYED	ENHANCEMENT	TIME IMPOSED OR "S" FOR STAYED	TOTAL	

4. Defendant sentenced ☐ to prison commitment per PC 1170(a), 1170(h)(3), or 1170.1(a) ☐ to county jail per PC 1170(h)(1) or (2)
☐ per PC 667(b)-(i) or PC 1170.12 (strike prior)
☐ per PC 1170(a)(3). Pre-confinement credits equal or exceed time imposed. Defendant ordered to report to local parole office upon release.

5. INCOMPLETE SENTENCE(S) CONSECUTIVE

COUNTY	CASE NUMBER

6. TOTAL TIME ON ATTACHED PAGES:	00	00
7. ☒ Additional indeterminate term (see CR-292).		
8. TOTAL TIME:	11	00

This form is prescribed under PC 1213.5 to satisfy the requirements of PC 1213 for determinate sentences. Attachments may be used but must be referred to in this document.

PEOPLE OF THE STATE OF CALIFORNIA vs.
DEFENDANT: **Phan, Thanh Tan**

08WF0487

-A

-B

-C

-D

9. FINANCIAL OBLIGATIONS (plus any applicable penalty assessments):

a. Restitution Fines:

Case A: \$_____ per PC 1202.4(b) (forthwith per PC 2085.5 if prison commitment); \$_____ per PC 1202.45 suspended unless parole is revoked.
\$_____ per PC 1202.44 is now due, probation having been revoked.

Case B: \$_____ per PC 1202.4(b) (forthwith per PC 2085.5 if prison commitment); \$_____ per PC 1202.45 suspended unless parole is revoked.
\$_____ per PC 1202.44 is now due, probation having been revoked.

Case C: \$_____ per PC 1202.4(b) (forthwith per PC 2085.5 if prison commitment); \$_____ per PC 1202.45 suspended unless parole is revoked.
\$_____ per PC 1202.44 is now due, probation having been revoked.

Case D: \$_____ per PC 1202.4(b) (forthwith per PC 2085.5 if prison commitment); \$_____ per PC 1202.45 suspended unless parole is revoked.
\$_____ per PC 1202.44 is now due, probation having been revoked.

b. Restitution per PC 1202.4(f):

Case A: \$_____ ☐ Amount to be determined to ☐ victim(s)* ☐ Restitution Fund

Case B: \$_____ ☐ Amount to be determined to ☐ victim(s)* ☐ Restitution Fund

Case C: \$_____ ☐ Amount to be determined to ☐ victim(s)* ☐ Restitution Fund

Case D: \$_____ ☐ Amount to be determined to ☐ victim(s)* ☐ Restitution Fund

☐ *Victim name(s), if known, and amount breakdown in item 13, below. ☐ *Victim name(s) in probation officer's report.

c. Fines:

Case A: \$_____ per PC 1202.5 \$_____ per VC 23550 or _____ days ☐ county jail ☐ prison in lieu of fine ☐ concurrent ☐ consecutive
☐ Includes: ☐ \$50 Lab Fee per HS 11372.5(a) ☐ \$_____ Drug Program Fee per HS 11372.7(a) for each qualifying offense

Case B: \$_____ per PC 1202.5 \$_____ per VC 23550 or _____ days ☐ county jail ☐ prison in lieu of fine ☐ concurrent ☐ consecutive
☐ Includes: ☐ \$50 Lab Fee per HS 11372.5(a) ☐ \$_____ Drug Program Fee per HS 11372.7(a) for each qualifying offense

Case C: \$_____ per PC 1202.5 \$_____ per VC 23550 or _____ days ☐ county jail ☐ prison in lieu of fine ☐ concurrent ☐ consecutive
☐ Includes: ☐ \$50 Lab Fee per HS 11372.5(a) ☐ \$_____ Drug Program Fee per HS 11372.7(a) for each qualifying offense

Case D: \$_____ per PC 1202.5 \$_____ per VC 23550 or _____ days ☐ county jail ☐ prison in lieu of fine ☐ concurrent ☐ consecutive
☐ Includes: ☐ \$50 Lab Fee per HS 11372.5(a) ☐ \$_____ Drug Program Fee per HS 11372.7(a) for each qualifying offense

d. Court Security Fee: \$_____ per PC 1465.8.

e. Criminal Conviction Assessment: \$_____ per GC 70373.

10. TESTING: ☐ Compliance with PC 296 verified ☐ AIDS per PC 1202.1 ☒ other (specify): **DNA PC 296**

11. REGISTRATION REQUIREMENT: ☐ per (specify code section): _____

12. ☐ MANDATORY SUPERVISION: Execution of a portion of the defendant's sentence is suspended and deemed a period of mandatory supervision under Penal Code section 1170(h)(5)(B) as follows (specify total sentence, portion suspended, and amount to be served forthwith):

Total: _____ Suspended: _____ Served forthwith: _____

13. Other orders (specify): **Please see Indeterminate Sentence**

14. IMMEDIATE SENTENCING: ☐ Probation to prepare and submit a post-sentence report to CDCR per 1203c
Defendant's race/national origin: **Vietnamese**

15. EXECUTION OF SENTENCING IMPOSED

- a. ☐ at initial sentencing hearing
b. ☐ at resentencing per decision on appeal
c. ☐ after revocation of probation
d. ☐ at resentencing per recall of commitment (PC 1170(d).)
e. ☒ other (specify): **Chambers work**

16. CREDIT FOR TIME SERVED

CASE	TOTAL CREDITS	ACTUAL	LOCAL CONDUCT
A	1,288	1,120	168 ☐ 2833 ☐ 2933.1 ☐ 4019
B			☐ 2833 ☐ 2933.1 ☐ 4019
C			☐ 2833 ☐ 2933.1 ☐ 4019
D			☐ 2833 ☐ 2933.1 ☐ 4019
Date Sentence Pronounced		Time Served in State Institution	
06/13/12		DMH	CDC CRC
		☐	☒ ☐

17. The defendant is remanded to the custody of the sheriff ☐ forthwith ☐ after 48 hours excluding Saturdays, Sundays, and holidays.
To be delivered to ☐ the reception center designated by the director of the California Department of Corrections and Rehabilitation.
☐ county jail ☐ other (specify): _____

I hereby certify the foregoing to be a correct abstract of the judgment made in this action.

DEPUTY SIGNATURE

E. Flores

DATE

JUN 26, 2012

CR-290 (Rev. January 2, 2012)



CLERK OF THE COURT

ABSTRACT OF JUDGMENT—DETERMINATE